

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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FRANKIE BRETON,

Plaintiff,
-against-

THE CITY OF NEW YORK, SERGEANT ELVIN
PICHARDO, POLICE OFFICER VALDRIN NIQKI,
POLICE OFFICER FRANCIS CONEJO AND NEW
YORK CITY POLICE DEPARTMENT
EMPLOYEE DOES 1-5,

Defendants.

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TO THE ABOVE-NAMED DEFENDANT:

You are hereby summoned and required to serve upon Plaintiff's attorney an answer to the complaint in this action within 20 days after the service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
April 6, 2023

Index No.:

SUMMONS

Plaintiff designates BRONX
COUNTY as the place of trial.

The basis of venue is the county
in which the cause of action arose/
CPLR 504(3)

The Law Firm of Andrew M. Stengel, P.C.
Attorneys for Plaintiff



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Index No.:

VERIFIED COMPLAINT

JURY TRIAL DEMAND

Plaintiff Frankie Breton his attorneys, The Law Firm of Andrew M. Stengel, P.C., 11 Broadway, Suite 715, New York, New York, 10004, alleges upon knowledge with respect to himself, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff Frankie Breton seeks relief for violations of rights secured by the Civil Rights Act of 1871, 42 U.S.C. § 1983; rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution; and for rights secured under the laws and constitution of the State of New York. Plaintiff seeks damages, compensatory and exemplary, an award of costs and attorneys' fees, and such other and further relief as this Court deems just and proper.

2. This civil rights action arises from members of the New York City Police Department framing Mr. Breton for a crime, his false arrest, malicious prosecution and the manufacture of evidence against him.

3. The City of New York is indifferent to New York City Police Department employees who commit perjury, intentionally make false official statements about material matters and/or fabricate evidence in violation of the right to a fair trial guaranteed by the U.S. Constitution.

4. Similarly, the City of New York is indifferent to the Bronx County District Attorney and Bronx County Assistant District Attorneys relying on incredible police witnesses to initiate and maintain criminal prosecutions and the subornation of perjury in violation of the right to a fair trial guaranteed by the U.S. Constitution.

THE PARTIES

5. Plaintiff Frankie Breton (“Breton”) is a citizen of the United States and at all relevant times to this complaint, Plaintiff was and is a resident of the Bronx.

6. At all relevant times hereinafter Defendant City Of New York (“Defendant City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

7. At all relevant times hereinafter Defendant City was and is responsible for the policies, practices, customs of the NYPD and the Bronx County District Attorney’s Office.

8. At all relevant times hereinafter, Defendants Sergeant Elvin Pichardo, Police Officer Valdrin Nikqi, Police Officer Francis Conejo (collectively “the individual Defendants”) and NYPD employees John Does 1 to 5 were duly appointed and acting police officers employed by the NYPD.

9. At all relevant times, the Defendant City employed the individual Defendants involved in the acts and omissions stated herein.

10. At all times relevant to this complaint, the individual Defendants acted under the color of state law.

11. A Notice of Claim was filed within 90 days of the occurrence alleged herein.

12. More than 30 days have elapsed since the Notice of Claim was served upon the Defendants and Defendants have neglected or refused to make any adjustment or payment thereof.

13. This action is commenced within one year and 90 days after the cause of action arose.

JURISDICTION AND VENUE

14. This Court has jurisdiction over the subject matter of this action and the parties pursuant to CPLR 301.

15. This Court has jurisdiction over this action because the amount of damages Plaintiff seeks exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

16. Venue is proper in Bronx County pursuant to CPLR 504(3) because the claims arose in Bronx County.

FACTUAL ALLEGATIONS OF BRETON'S ARREST

17. On or about March 30, 2018, Breton was standing on Andrews Avenue South between West 179th Street and West Burnside Avenue in the Bronx.

18. Breton was lawfully present at the location, he did not possess marijuana or a plastic tube, he did not possess any weapon and he had not committed a crime.

19. An unmarked police car driven by Defendant Nikqi with passengers Defendants Pichardo and Conejo stopped near where Breton was standing.

20. Defendant Pichardo exited the vehicle, approached Breton and attempted to hand Breton a plastic tube that contained marijuana.

21. Breton declined to accept the plastic tube, which fell to the ground, spilling marijuana onto the sidewalk.

22. Breton was physically seized by Defendants Pichardo, Nikqi and Valdrin without probable cause or reasonable suspicion.

23. Breton was placed under arrest, handcuffed, led to the unmarked car and brought to the 46th Precinct in the Bronx.

24. At the 46th Precinct, Defendant Nikqi created police reports falsely claiming that Breton possessed a loaded firearm, marijuana and a plastic tube.

25. Defendant Nikqi created property clerk invoices falsely claiming that a firearm, marijuana and a plastic tube were recovered from Breton.

26. Defendant Nikqi placed the physical evidence that he falsely claimed was recovered from Breton, the firearm, marijuana and a plastic tube, inside NYPD property clerk invoice plastic bags, for use in the prosecution of Breton.

27. The false police reports claimed that Breton committed the crimes of Criminal Possession of a Weapon in the Second Degree and Unlawful Possession of Marijuana.

28. The false police reports and property clerk invoices were approved by Defendant Pichardo.

29. Defendant Nikqi forwarded the false police reports and property clerk invoices to the Bronx County District Attorney ("BCDA") for the purpose of initiating criminal proceedings against Breton.

30. Despite a known history of perjury and intentionally making false official

statements by Defendant Nikqi, the BCDA relied on Defendant Nikqi's false reports and property clerk invoices to charge Breton.

31. As a result of the false police reports and property clerk invoices, Breton was charged by the BCDA with Criminal Possession of a Weapon in the Second Degree and related firearms offenses, and Unlawful Possession of Marijuana.

32. Breton was innocent of the charges.

33. On March 31, 2018, Breton was arraigned in New York City Criminal Court, Bronx County, on the above-stated charges.

34. As a result of the charges, Breton was forced to retain a private defense attorney.

35. On April 13, 2017, Defendants Pichardo and Nikqi testified before the Grand Jury.

36. Despite a known history of perjury and false official statements about material matters by Defendants Pichardo and Nikqi, the BCDA relied on Defendants Pichardo and Nikqi to testify in the grand jury about Breton's arrest.

37. During his testimony, Defendant Pichardo committed perjury by falsely testifying that he observed Breton possess marijuana and a plastic tube prior to his arrest.

38. During his testimony, Defendant Pichardo committed perjury by falsely testifying that he recovered a firearm from Breton.

39. During his testimony, Defendant Nikqi committed perjury by falsely testifying that he observed Breton possess marijuana and a plastic tube prior to his arrest.

40. During his testimony, Defendant Nikqi committed perjury by falsely testifying that he recovered a firearm from Breton.

41. On or about May 3, 2018, Breton was indicted by a Bronx County Grand Jury based on the perjury of Defendants Pichardo and Nikqi for Criminal Possession of a Firearm, and related

firearms offenses.

42. Breton was innocent of the charges.

43. During the pendency of the criminal charges over more than four years and prior to pre-trial hearings and trial, Breton was forced to make approximately 60 appearances in Bronx County Supreme Court.

44. On or about June 9, 2022, a pre-trial hearing commenced in Bronx County Supreme Court.

45. Despite a known history of perjury and false official statements about material matters by Defendant Pichardo, the BCDA relied on Defendant Pichardo to testify in a pre-trial hearing about the circumstances of Breton's arrest.

46. Defendant Pichardo gave perjured testimony by falsely testifying that he observed that Breton possessed marijuana and a plastic tube prior to his arrest.

47. Defendant Pichardo gave perjured testimony by falsely testifying that he observed that Breton possessed a firearm prior to his arrest.

48. On or about June 14, 2022, a jury trial commenced in Bronx County Supreme Court.

49. Despite a known history of perjury and false official statements about material matters by Defendants Pichardo and Nikqi, the BCDA relied on Defendants Pichardo and Nikqi to testify at trial about Breton's arrest.

50. During the trial, Defendants Pichardo and Nikqi repeated their perjured testimony and both falsely claimed that Breton possessed marijuana, a plastic tube and a firearm before and/or at the time of his arrest.

51. During the trial, the physical evidence manufactured by Defendants Pichardo and

Nikqi was introduced and relied upon by the prosecution.

52. On July 1, 2022, the prosecution terminated favorably for Breton when a jury returned a verdict of not guilty.

53. Breton was forced to incur expenses in the defense of the false criminal charges.

54. During the more than four years that Breton was forced to defend false criminal charges, Breton suffered, and he continued to suffer, emotional distress.

**FACTUAL ALLEGATIONS OF NYPD PERJURY AND
SUBORNATION OF PERJURY BY THE BCDA'S OFFICE**

55. Before Breton's arrest, the NYPD knew that Defendants Pichardo and Nikqi gave perjured testimony and/or intentionally made false official statements about material matters, but the NYPD failed to discipline Defendants Pichardo or Nikqi in violation of the Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution.

56. Under the NYPD's Patrol Guide, perjury and/or intentionally making a false official statement about a material matter results in dismissal from the NYPD.

57. In 2007, the NYPD modified its false statement policy as set forth in Patrol Guide § 203-08: "The intentional making of a false statement is prohibited, and will be subject to disciplinary action, up to and including dismissal. Intentionally making a false official statement regarding a material matter will result in dismissal from the Department, absent exceptional circumstances."

58. Before Breton's arrest, the Bronx County District Attorney as well as Assistant District Attorneys appointed in Bronx County knew that Defendants Pichardo and Nikqi gave perjured testimony and/or intentionally made false official statements about material matters.

59. However, the Bronx County District Attorney as well as Assistant District

Attorneys appointed in Bronx County continued to rely on the incredible testimony of Defendants Pichardo and Nikqi to initiate and maintain criminal prosecutions in violation of the Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution.

60. For example, in 2016, Defendant Nikqi committed perjury in the grand jury when he testified for the BCDA's Office in *People v. Turnbull* that, among other things, he observed that defendant possessed a firearm by the outline of defendant's jacket.

61. On or about February 8, 2018, *People v. Turnbull* was dismissed by the BCDA due to Defendant Nikqi's perjury.

62. During numerous investigations by the Internal Affairs Bureau ("IAB"), Defendant Nikqi made intentionally false official statements about material matters, but he was not dismissed by the NYPD.

63. In 2009, Defendant Pichardo planted evidence on an arrestee, he was investigated for planting evidence, but Defendant Pichardo was not dismissed from the NYPD.

64. In 2013, Defendant Pichardo planted evidence on an arrestee, he was investigated for planting evidence, but Defendant Pichardo was not dismissed from the NYPD.

65. In 2019, Defendant Pichardo conducted an illegal search of a car and he intentionally made false official statements about material matters to the Civilian Complaint Review Board ("CCRB") about the circumstances of the search, but Defendant Pichardo was not dismissed from the NYPD.

66. During numerous investigations by the IAB, Defendant Pichardo gave intentionally false official statements about material matters, but he was not dismissed by the NYPD.

67. Defendants Pichardo and Nikqi committed perjury and intentionally made false statements in the grand jury, during pre-trial hearings and during the trial in Plaintiff's case.

68. Despite the perjury and/or intentionally false official statements about material matters by Defendant Nikqi, he was promoted to detective on or about May 29, 2020.

69. Despite the perjury and/or intentionally false official statements about material matters by Defendant Pichardo, he was promoted to Lieutenant on or about June 24, 2022.

70. The widespread perjury by NYPD employees and their intentional making of false official statements about material matters are well known to Defendant City.

71. The Bronx County District Attorney and Assistant District Attorneys routinely rely on NYPD witnesses who they know are not credible, who have committed perjury and who have made intentionally false statements about material matters to initiate criminal proceedings and to testify in the grand jury, during pre-trial hearings and at trial, which is known to Defendant City.

72. The widespread subornation of perjury by the Bronx County District Attorney and Assistant District Attorneys in Bronx County from NYPD witnesses is known to Defendant City.

CAUSES OF ACTION

AS AND FOR PLAINTIFF'S FIRST CAUSE OF ACTION:

***(Malicious Prosecution Under New York State Law;
Defendants Pichardo and Nikqi)***

73. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

74. Defendants Pichardo and Nikqi initiated the prosecution against Plaintiff.

75. Defendants Pichardo and Nikqi lacked probable cause to believe Plaintiff committed a crime or that the prosecution would succeed.

76. Defendants Pichardo and Nikqi acted with malice, which, in the absence of probable cause, may be inferred.

77. The prosecution was terminated in Plaintiff's favor when Plaintiff was found not guilty following a jury trial.

78. Due to the intentional, willful and unlawful acts of Defendants Pichardo and Nikqi, Plaintiff suffered significant damages.

79. The acts of Defendants Pichardo and Nikqi occurred while they were on duty, in the scope of their duties and functions as NYPD employees, and while they were acting as agents, officers, servants, and employees of Defendant City. Defendant City, as employer of Defendants Pichardo and Nikqi, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

81. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S SECOND CAUSE OF ACTION:
(Malicious Prosecution Under 42 U.S.C. § 1983;
Defendants Pichardo and Nikqi)

82. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

83. Defendants Pichardo and Nikqi lacked probable cause to believe Plaintiff committed a crime or that the prosecution would succeed.

84. Defendants Pichardo and Nikqi, acted with malice, which, in the absence of probable cause, may be inferred.

85. The prosecution was terminated in Plaintiff's favor when Plaintiff was found not guilty following a jury trial.

86. Defendants Pichardo and Nikqi violated Plaintiff's rights under the Fourth and Fourteenth Amendments of the U.S. Constitution by causing Plaintiff to return to court and contest false allegations against him.

87. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

88. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S THIRD CAUSE OF ACTION:
(Denial of the Right to a Fair Trial Under New York State Law;
Defendants Pichardo and Nikqi and City of New York)

89. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

90. Defendants Pichardo and Nikqi were the investigating officials relating to Plaintiff's arrest.

91. Defendants Pichardo and Nikqi, acting in concert and aiding and abetting the other, manufactured a firearm, marijuana and a plastic tube for use in the prosecution of Plaintiff.

92. Defendants Pichardo and Nikqi, acting in concert and aiding and abetting the other, created police reports and property clerk invoices with false information.

93. The false information contained in the police reports, property clerk invoices and/or physical evidence manufactured and created by Defendants Pichardo and Nikqi were likely to influence a jury's decision.

94. The police reports and property clerk invoices with false information were forwarded to prosecutors who relied on them to commence and continue criminal proceedings against Plaintiff.

95. Plaintiff suffered material harm as a result of the acts and omissions of Defendants Pichardo and Nikqi.

96. Plaintiff suffered a deprivation of life, liberty and property as a result of the acts and omissions of Defendants Pichardo and Nikqi.

97. The acts of Defendants Pichardo and Nikqi occurred while they were on duty, in the scope of their duties and functions as NYPD employees, and while they were acting as agents, officers, servants, and employees of Defendant City. Defendant City, as employer of Defendants Pichardo and Nikqi, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

99. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S FOURTH CAUSE OF ACTION:
(Denial of the Right to a Fair Trial Under 42 U.S.C. § 1983;
Defendants Pichardo and Nikqi)

100. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

101. Defendants Pichardo and Nikqi were the investigating officials relating to Plaintiff's arrest.

102. Defendants Pichardo and Nikqi, acting in concert and aiding and abetting the other, fabricated information and evidence to be used against Plaintiff.

103. Defendants Pichardo and Nikqi, acting in concert and aiding and abetting the other, manufactured a firearm, marijuana and a plastic tube for use in the prosecution of Plaintiff.

104. The false information contained in the police reports, property clerk invoices and/or physical evidence manufactured and created by Defendants Pichardo and Nikqi were likely to influence a jury's decision.

105. As a result of the actions of Defendants Pichardo and Nikqi, Plaintiff suffered a deprivation of life and liberty.

106. Defendants Pichardo and Nikqi violated Plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the U.S. Constitution by causing Plaintiff to return to court and contest false allegations against him.

107. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

108. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S FIFTH CAUSE OF ACTION:
(Negligent Hiring, Training, Retention and Supervision Under New York State Law;
Defendant City of New York)

109. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

110. By virtue of the foregoing, Defendant City Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or grossly negligent hiring, retention, and supervision of its agents, servants and/or NYPD employees with regard to their duties, including:

- a. the duty not to rely on false, misleading or unreliable testimony or intentionally false official statements about material matters;
- b. the continuing obligation to correct false, inaccurate, incomplete or misleading evidence, and official material statements; and

c. the duty to appropriately discipline and/or dismiss employees who commit perjury or intentionally make false official statements about material matters.

128. Policymaking and supervisory officials for the NYPD and Defendant City had legal and constitutional obligations to prevent their employees from violating the above duties.

129. Those policymakers and officials had knowledge and notice that adequate policies regarding hiring, retention and supervision were necessary with respect to rank-and-file police officers and their supervisors, and that failing to implement such policies would result in the violation of the constitutional rights of individuals investigated and arrested by the NYPD, based upon, among other things, the facts set forth herein.

111. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

112. By reason of the foregoing, Defendant City is liable for the damages set forth above.

AS AND FOR PLAINTIFF'S SIXTH CAUSE OF ACTION:
(Failure to Intervene Under New York State Law;
Defendant Conejo and City of New York)

113. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

114. Defendant Conejo was present and observed Defendant Pichardo and Defendant Nikqi violate Plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution.

115. Defendant Conejo knew, or deliberately ignored, the fact that the constitutional violations were going to be, or were being, committed against Plaintiff.

116. Defendant Conejo had a reasonable opportunity to intervene and prevent the harm to Plaintiff.

117. Defendant Conejo did not take reasonable steps to intervene.

118. The acts of Defendant Conejo occurred while he was on duty, in the scope of his duties and functions as an NYPD employee, and while he was acting as an agent, officer, servant, and employee of Defendant City. Defendant City, as employer of Defendant Conejo, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

119. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

120. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S SEVENTH CAUSE OF ACTION:
(Failure to Intervene Under 42 U.S.C. § 1983; Defendant Conejo)

121. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

122. Defendant Conejo was present when Defendant Pichardo and Defendant Nikqi violated Plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments to the U.S. Constitution.

123. Defendant Conejo knew, or deliberately ignored, the fact that the constitutional violations were going to be, or were being, committed.

124. Defendant Conejo had a reasonable opportunity to intervene and prevent the harm to Plaintiff.

125. Defendant Conejo did not take reasonable steps to intervene.

126. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

127. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S EIGHTH CAUSE OF ACTION:
(Monell Liability Under 42 U.S.C. § 1983 Based on Conduct of NYPD;
Defendant City of New York)

128. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

129. The foregoing violations of Plaintiff's federal constitutional rights and injuries were further directly, foreseeably, proximately, and substantially caused by conduct, chargeable to the Defendant City amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

130. Prior to Plaintiff's arrest, policymaking officials at the NYPD, with deliberate indifference to the constitutional rights of individuals suspected or accused of criminal activity, to the risk of arresting, prosecuting and convicting innocent people, and to the rights of all criminal suspects and defendants to due process and a fair trial, implemented plainly inadequate policies, procedures, regulations, practices, customs, training, supervision, and discipline concerning the investigation, prosecution and dismissal of NYPD employees who commit perjury or make intentionally false official statements about material matters in connection with an arrest and prosecution.

131. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for the Defendant City, including but not limited to, the NYPD Commissioner, who knew (or should have known):

a. To a moral certainty that such policies, procedures, regulations, practices

and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases;

b. That such issues either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations as well as the incentives that police employees have to make the wrong choice; and

c. That the wrong choice by such employees concerning such issues will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

132. The NYPD's policy, custom and practice of approval and/or ratification of, toleration and/or acquiescence in, or deliberate indifference to violations of its constitutional obligations foreseeably encouraged such violations to continue and was a substantial cause of the violations of Plaintiff's constitutional rights beginning with his false arrest and the initiation of a criminal prosecution against him without probable cause and continuing throughout his criminal proceedings and trial including the manufacture of evidence against him perjury in the grand jury, during pre-trial hearings and at trial and intentionally false official statements about material matters.

133. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraph based upon, and the need to investigate and supervise officers by, among other circumstances including:

a. Since at least 1984, Defendant City and the NYPD were on notice of the inadequacy of its training, supervision, and discipline policies, and that police officers

joining the force were disproportionately involved in the same type of misconduct and abuse as in Plaintiff's case as described in "Mayor's Advisory Committee on Police Management and Personnel Policy, Final Report," dated February 24, 1987.

b. In 1994, the Mollen Commission detailed the NYPD's policies and customs of, deliberate indifference to police misconduct, including the coercion of false or misleading statements, fabrication of evidence, and withholding information favorable to the defense in "The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department," dated July 7, 1994.

c. In 1996, the Commission to Combat Police Corruption ("Commission"), which was established by the Mayor's Executive Order, published a report "The New York City Police Department's 'Disciplinary System: How the Department Disciplines Its Members Who Make False Statements,'" dated December 12, 1996. The Commission's 1996 report encouraged a change to NYPD policy that would require dismissal from the NYPD for perjury and official false statements about material matters.

d. In 2007, the NYPD modified its false statement policy as set forth in Patrol Guide § 203-08: "The intentional making of a false statement is prohibited, and will be subject to disciplinary action, up to and including dismissal. Intentionally making a false official statement regarding a material matter will result in dismissal from the Department, absent exceptional circumstances."

e. In 2015, the Commission published its Seventeenth Annual report based on its review of IAB investigations and disciplinary cases in 2014. The Commission found that the NYPD rarely brought charges under the Patrol Guide's false statement policy. The

Commission reviewed 28 disciplinary cases for false official statements, but zero cases resulted in dismissal from the NYPD.

f. In 2017, the Commission published its Eighteenth Annual report based on its review of IAB investigations and disciplinary cases in 2015 and most of 2016. The report states: “In numerous Annual Reports, the Commission has criticized the Department for charging officers with making false official statements in far fewer instances than facts and circumstances seem to warrant. Often, the circumstances in reviewed cases leave little doubt that the subject officer made statements that were false, official, more elaborate than ‘mere denials’ and, by any reasonable estimation, both intentional and material. Yet, the Department appears to routinely employ other Patrol Guide sections to address the misconduct, bypassing the mandatory termination penalty in the process.” The Commission found that in 88% of cases where an NYPD employee made a false statement, the NYPD charged misconduct under a section that did not require dismissal from the NYPD. The Commission also found that in 11 cases where an NYPD employee committed perjury, only 6 were dismissed (or retired) from the NYPD.

g. In 2019, the Commission published its Ninetieth Annual report based on its review of IAB investigations and disciplinary cases in 2017 and 2018. The report found that in 85% of cases where an NYPD employee made a false statement, the NYPD charged misconduct under a section that did not require dismissal from the NYPD. Of 47 NYPD employees who were charged with an alternative Patrol Guide section, only 5 were dismissed from the NYPD.

h. On March 5, 2018, BuzzFeed published “Secret NYPD Files: Officers Who Lie And Brutally Beat People Can Keep Their Jobs.” The reporting established that from

2011 to 2015, “at least 319 New York Police Department employees who committed offenses serious enough to merit firing were allowed to keep their jobs.” At least 50 of the police officers “were found guilty of misleading or making ‘inaccurate’ statements in official records, to grand juries, district attorneys, or internal affairs investigators — and yet were kept on the force.”

i. In April 2022, LatinoJustice PRLDEF published “Shielded From Accountability: How NYPD Officers Get Away with Lying to the Civilian Compliant Review Board. The report analyzed 144 CCRB cases from 2010 to 202 and concluded that “the NYPD has utterly failed to take lying by officers seriously, refusing to discipline officers in the face of incontrovertible evidence that they lied.”

i. In 2008, Police Officer Raymond Marrero assigned to the 52nd Precinct in the Bronx, manufactured evidence and charges against a woman who was videotaping Officer Marrero as he was arrested by her boyfriend. The woman was acquitted of all charges. Police Officer Marrero did not face any consequences for his perjury and/or his intentionally making false official statements about material matters. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Police Officer Marrero’s incredible testimony in criminal prosecutions.

ii. In 2009, Police Officer Marrero beat a handcuffed arrestee with a baton opening a gash in the man’s head. Police Officer Marrero falsely denied that he used physical force. Police Officer Marrero did not face any consequences for his perjury and/or his intentionally making false official statements about material matters. Upon information and belief, the BCDA and Bronx County Assistant

District Attorneys continued to rely on Police Officer Marrero's incredible testimony in criminal prosecutions.

iii. In 2010, Police Officer Luis Rios of the 49th Precinct was dismissed from the NYPD after a department trial, however, the judgment was suspended. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Police Officer Rios's incredible testimony in criminal prosecutions.

iv. In 2012, Police Officer Lisa Marsh of the 48th Precinct covered up a crime and submitted false documents in connection with the investigation. In 2015, she was dismissed from the NYPD after a department trial, however, the judgment was suspended. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Police Officer Marsh's incredible testimony in criminal prosecutions.

v. In 2015, Police Officer Fernando Rodriguez of the 40th Precinct arrested a woman for no reason and lied in a CCRB interview about all the circumstances of the arrest. Despite the perjury and/or intentionally false official statements about material matters, Police Officer Rodriguez was promoted to detective in 2020. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Detective Rodriguez's incredible testimony in criminal prosecutions.

vi. In 2015, Detective Daryl Schwartz of the 46th Precinct arrested a man for driving while intoxicated even though a breath test revealed a blood alcohol content of 0.0%. Detective Schwartz did not face any consequences for his perjury

and/or his intentionally making false official statements about material matters. The BCDA and Bronx County Assistant District Attorneys continued to rely on Detective Schwartz's incredible testimony in criminal prosecutions including for driving while intoxicated arrests.

vii. In 2015, Sergeant Robert King of the 52nd Precinct lied in a CCRB interview about obtaining consent to search a car. Sergeant King did not face any consequences for his perjury and/or his intentionally making false official statements about material matters. Rather, in 2020, he was promoted to Lieutenant. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Sergeant King's incredible testimony in criminal prosecutions.

viii. In 2016, Police Officers Darrell Lowe and Warren Lopez of the Patrol Borough Bronx illegally entered an apartment and searched a man. Both police officers lied in a CCRB interview about every aspect of the encounter. Despite their perjury and/or intentionally making false official statements about material matters neither police officer was dismissed from the NYPD. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on the incredible testimony of both police officers in criminal prosecutions.

ix. In 2016, Detectives Kenneth Russell and Robert Hawreluk of the 47th Precinct, arrested a man without probable cause who sitting on his apartment building's steps. Both detectives lied in a CCRB interview about the circumstances of the arrest. Despite their perjury and/or intentionally making false official

statements about material matters neither detective was disciplined. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on the incredible testimony of both detectives in criminal prosecutions.

x. In 2016, Police Officer Elvis Duran of PSA 7 falsely arrested a man who was video recording an interaction between two other men and police officers. Police Officer Duran, who lied in a CCRB interview about the encounter, arrested the man even though he did not commit a crime. Police Officer Duran did not face any consequences for his manufacture of evidence, his perjury and/or intentionally making false official statements about material matters. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Police Officer Duran's incredible testimony in criminal prosecutions.

xi. In 2016, Sergeant William Butler of the 50th Precinct lied in a CCRB interview about an illegal strip search of an arrestee. Sergeant Butler did not face any consequences for his perjury and/or intentionally making false official statements about material matters. On the contrary, in June 2021, Sergeant Butler was promoted to Lieutenant. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Sergeant Butler's incredible testimony in criminal prosecutions.

xii. In 2017 Police Officer Marleny Estevez of the 46th Precinct lied in a CCRB interview about illegally entering an apartment. Police Officer Estevez did not face any consequences for her perjury and/or intentionally making false official statements about material matters. Upon information and belief, the BCDA and

Bronx County Assistant District Attorneys continued to rely on Police Officer Estevez's incredible testimony in criminal prosecutions.

xiii. In 2017, Police Officer Scott Pariona of the 40th Precinct was in an elevator where he witnessed police use excessive force and a chokehold against a man. Police Officer Pariona lied in a CCRB interview about all the circumstances of the assault. Police Officer Pariona did not face any consequences for his perjury and/or intentionally making false official statements about material matters. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Police Officer Pariona's incredible testimony in criminal prosecutions.

xiv. In 2017, Police Officer Nector Martinez of the 41st Precinct perjured himself during a gun trial. Rather than face any consequences for his perjury and/or his intentionally making false official statements about material matters, Police Officer Martinez was promoted to Detective. Upon information and belief, the BCDA and Bronx County Assistant District Attorneys continued to rely on Police Officer Martinez's incredible testimony in criminal prosecutions.

134. The NYPD's policy, custom and practice of approval and/or ratification of, toleration and/or acquiescence in, or deliberate indifference to violations of its constitutional obligations foreseeably encouraged such violations to continue and was a substantial cause of the violations of Plaintiff's constitutional rights beginning with his false arrest and the initiation of a criminal prosecution against him without probable cause, manufacture of evidence against him, and continuing throughout his criminal prosecution and trial with perjured testimony during the grand jury, pre-trial hearings and trial.

135. Under the principles of municipal liability for federal civil rights violations, the City's NYPD Commissioner (or her/his authorized delegates), has final responsibility for training, instructing, supervising, and disciplining police personnel with respect to the investigation and prosecution of criminal matters, including constitutional requirements governing the initiation of criminal prosecutions, the use of only truthful evidence giving perjured testimony and making intentionally false official statements about material matters.

136. The NYPD Commissioner, personally and/or through her/his authorized delegates, at all relevant times had final authority and constitutes a policymaker for whom the Defendant City is liable, with respect to compliance by NYPD employees with the above-mentioned constitutional requirements.

137. During all times material to this Complaint, the Police Commissioner owed a duty to the public at large and to Plaintiff, which she/he knowingly and intentionally breached, or to which she/he was deliberately indifferent, to implement policies, procedures, customs, practices, training, supervision and discipline sufficient to prevent or deter conduct by his subordinates violating the aforementioned constitutional rights of criminal suspects.

138. The aforesaid policies, procedures, regulations, practices and/or customs of the Defendant City and the NYPD were collectively and individually a substantial factor in bringing about the aforesaid violations by Defendants City, Pichardo and Nikqi of Plaintiff's rights under the U.S. Constitution and laws of the United States.

139. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

140. By reason of the foregoing, Defendants are liable for the damages set forth above.

AS AND FOR PLAINTIFF'S NINTH CAUSE OF ACTION:
(Monell Liability Under 42 U.S.C. § 1983 Based on Conduct of KCDA;
Defendant City of New York)

141. Plaintiff realleges and Plaintiff repeats and realleges each and every previous allegation contained in this Complaint and incorporates them here.

142. The foregoing violations of Plaintiff's federal constitutional rights and injuries were further directly, foreseeably, proximately, and substantially caused by conduct, chargeable to the Defendant City amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff who are investigated, arrested, or prosecuted for alleged criminal activities.

143. Prior to Plaintiff's arrest, the Bronx County District Attorney and policymaking officials at the BCDA, with deliberate indifference to the constitutional rights of individuals suspected, accused or prosecuted for criminal activity, to the risk of prosecuting and convicting innocent people, and to the rights of all criminal suspects and defendants to due process and a fair trial, implemented plainly inadequate policies, procedures, regulations, practices, customs, training, supervision, and discipline concerning the initiation of criminal proceedings by statements of NYPD witnesses who are not credible, the reliance on incredible NYPD witnesses in connection with criminal prosecutions including testimony in the grand jury, during pre-trial hearings and at trial and the subornation of perjury from incredible NYPD witnesses.

144. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for the Defendant City, including but not limited to, the Bronx County District Attorney, who knew (or should have known):

a. To a moral certainty that such policies, procedures, regulations, practices

and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases;

b. That such issues either present The Bronx County District Attorney and Bronx County Assistant District Attorneys and employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of Bronx County Assistant District Attorneys and employees mishandling such situations as well as the incentives that Bronx County Assistant District Attorneys and employees have to make the wrong choice; and

c. That the wrong choice by such employees concerning such issues will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

145. The Bronx County District Attorney's policy, custom and practice of approval and/or ratification of, toleration and/or acquiescence in, or deliberate indifference to violations of its constitutional obligations foreseeably encouraged such violations to continue and was a substantial cause of the violations of Plaintiff's constitutional rights beginning with his false arrest, manufacture of evidence against him and the initiation of a criminal prosecution against him without probable cause, the initiation of criminal proceedings by official statements of NYPD witnesses who are not credible, the reliance on incredible NYPD witnesses in connection with criminal prosecutions including testimony in the grand jury, during pre-trial hearings and at trial and the subornation of perjury from incredible NYPD witnesses.

146. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraph based upon, and the need to investigate and supervise Bronx

County Assistant District Attorneys and employees who initiate criminal proceedings by official statements of NYPD witnesses who are not credible, rely on the same incredible NYPD witnesses in connection with criminal prosecutions including testimony in the grand jury, during pre-trial hearings and at trial and suborn perjury from incredible NYPD witnesses during sworn testimony, among other circumstances described in in the history of Defendants Pichardo and Nikqi and in other detail in ¶ 133 of this Complaint.

147. The Bronx County District Attorney's policy, custom and practice of approval and/or ratification of, toleration and/or acquiescence in, or deliberate indifference to violations of its constitutional obligations foreseeably encouraged such violations to continue and was a substantial cause of the violations of Plaintiff's constitutional rights beginning with his false arrest, the manufacture of evidence and the initiation of a criminal prosecution against him without probable cause, and continuing throughout his criminal prosecution and trial, including testimony in the grand jury, during pre-trial hearings and at trial.

148. Under the principles of municipal liability for federal civil rights violations, the Bronx County District Attorney (or her/his authorized delegates), has final responsibility for training, instructing, supervising, and disciplining Bronx County Assistant District Attorneys and employees with respect to the investigation and prosecution of criminal matters, including constitutional requirements governing the initiation and continuation of criminal prosecutions including the grand jury, pre-trial hearings and trial and the use of only truthful and reliable evidence.

149. The Bronx County District Attorney, personally and/or through her/his authorized delegates, at all relevant times had final authority and constitutes a policymaker for whom the

Defendant City is liable, with respect to compliance by Bronx County District Attorney Assistant District Attorneys and employees with the above-mentioned constitutional requirements.

150. During all times material to this Complaint, the Bronx County District Attorney owed a duty to the public at large and to Plaintiff, which she/he knowingly and intentionally breached, or to which she/he was deliberately indifferent, to implement policies, procedures, customs, practices, training, supervision and discipline sufficient to prevent or deter conduct by his subordinates violating the aforementioned constitutional rights of criminal suspects.

151. The aforesaid policies, procedures, regulations, practices and/or customs of the Defendant City and the Bronx County District Attorney were collectively and individually a substantial factor in bringing about the aforesaid violations by Defendants City, Pichardo and Nikqi of Plaintiff's rights under the U.S. Constitution and laws of the United States.

152. As a direct and proximate result of the foregoing, Plaintiff was damaged and injured in an amount to be determined at trial.

153. By reason of the foregoing, Defendants are liable for the damages set forth above.

DEMAND FOR JURY TRIAL

Plaintiff herein demands a trial by jury for all issues in this action.

REQUESTED RELIEF

WHEREFORE, Plaintiff respectfully prays for a Judgment against Defendant as follows:

- i. Awarding Plaintiff compensatory damages for expenses and for mental, emotional, psychological, and physical injuries, distress, pain and suffering, and for injury to his reputation in an amount to be determined at trial but in any case, no less than stated above;
- ii. Awarding Plaintiff punitive damages to be determined at trial;

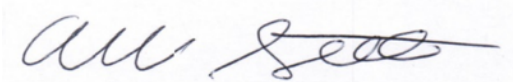
iii. Awarding Plaintiff reasonable attorney fees, litigation expenses and costs incurred in bringing this action; and

iv. Such other relief that this court deems appropriate and just under the circumstances.

Dated: New York, New York
April 6, 2023

Respectfully submitted,

The Law Firm of Andrew M. Stengel, P.C.
Attorneys for Plaintiff



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VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

ANDREW M. STENGEL, an attorney duly admitted to practice in the courts of the State of New York makes the following statement under penalty of perjury pursuant to CPLR 2106:

I am the attorney of record for the Plaintiff in the matter within. I have read the foregoing Verified Complaint and I know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true. The grounds for my belief are from information received from the Plaintiff.

This verification is made by me rather than by Plaintiff because the Plaintiff is not presently within New York County, the County in which I maintain my office; and the Plaintiff does not reside within New York County.

Dated: New York, New York
April 6, 2023



Andrew M. Stengel, Esq.

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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FRANKIE BRETON,

Index No.

Plaintiff,
-against-

THE CITY OF NEW YORK, SERGEANT ELVIN
PICHARDO, POLICE OFFICER VALDRIN NIQKI,
POLICE OFFICER FRANCIS CONEJO AND NEW
YORK CITY POLICE DEPARTMENT
EMPLOYEE DOES 1-5,

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

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Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 6, 2023



Andrew M. Stengel

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